



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings

- against -

Police Officer Elisamuel Samboy

Tax Registry No. 970836

Queens Court Section

: FINAL

: ORDER

: OF

: DISMISSAL
-----X

Police Officer Elisamuel Samboy, Tax Registry No. 970836, having been served with written notice, has been tried on written Charges and Specifications numbered C-032491, as set forth on form P.D. 468-121, dated March 26, 2025 (amended on August 21, 2025), and after a review of the entire record, Respondent, having pleaded Guilty to all charges, is found Guilty.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Elisamuel Samboy from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE:

10/3/25

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POLICE DEPARTMENT

September 15, 2025

-----X
In the Matter of the Charges and Specifications :
- against - :
Police Officer Elisamuel Samboy :
Tax Registry No. 970836 :
Queens Court Section :
-----X

Case No.

C-032491

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Timothy Marsh, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Elisamuel Samboy, while off duty and assigned to the Queens Court Section, between on or about August 28, 2024 and on or about January 28, 2025, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Samboy altered his license plate by bending the corners and obstructed the license plate number. *(As amended)*

N.Y. VTL § 402(1)(b)(i-iii)

DISTINCTIVE NUMBER;
FORM OF NUMBER
PLATES

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Police Officer Elisamuel Samboy, while off duty and assigned to the 83 Precinct, between on or about July 19, 2022 and on or about June 18, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Samboy did fraudulently create a New York State registration and inspection sticker using Photoshop and displayed said documents in his vehicle.

N. Y. Penal Law § 170.10(3)

FORGERY IN THE SECOND
DEGREE

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Said Police Officer Elisamuel Samboy, while off duty and assigned to the 83 Precinct, between on or about July 19, 2022 and on or about June 18, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Samboy obscured his license plate by covering the last digit with black paint and a piece of tape. *(As amended)*

N.Y. VTL § 402(1)(b)(i-iii)

DISTINCTIVE NUMBER;
FORM OF NUMBER
PLATES

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

4. Said Police Officer Elisamuel Samboy, while off duty and assigned to Queens Court Section, on or about June 18, 2024, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Samboy was in possession of a fraudulent New York State registration and inspection sticker and displayed said documents in his vehicle.

N.Y. Penal Law § 170.25

CRIMINAL POSSESSION
OF A FORGED
INSTRUMENT IN THE
SECOND DEGREE

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 28, 2025. Respondent, through his counsel, entered a plea of guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, and in accordance with his plea, I find Respondent Guilty of all four specifications and recommend that he be DISMISSED from the New York City Police Department.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, who was appointed to the Department on December 29, 2020, has pled guilty to the charged misconduct, including conduct that constitutes the New York State Penal Law Class D felonies of Forgery in the Second Degree and Criminal Possession of a Forged Instrument in the Second Degree, as well as Vehicle and Traffic Law violations prohibiting obstructing license plates. At the mitigation hearing, he admitted that between July 19, 2022, and June 18, 2024, he obscured the last digit on the license plate of his Volkswagen Jetta by covering it with tape and black paint. In addition, during that time Respondent used his personal computer to create fraudulent New York State DMV registration and inspection¹ documents that he displayed in the car. He consistently operated and parked this vehicle on public roads with these forged documents and altered plates. In addition, Respondent admitted that in 2024, a second plate for the Volkswagen Jetta was issued and he bent the corners of it to obscure the first and last digits. He drove the Jetta with the license plate in that condition between August 28, 2024, and January 28, 2025.

¹ The tribunal takes judicial notice that NYS DMV vehicle inspection and registration documents each constitute a "written instrument officially issued or created by a public office, public servant, or governmental instrumentality," as outlined in NYS Penal Law § 170.10 (3), Forgery in the Second Degree.

Respondent testified that during the time periods in question, he was the owner of two vehicles— a Honda, which the mother of his three children drove, and a Volkswagen Jetta, which he drove. At some point in or around 2018, he registered the Jetta with the New York State DMV and paid for a NASCAR vanity plate personalized with his last name, “SAMBOY.” According to Respondent, the registration and insurance lapsed for lack of payment in 2022; as a result, he was unable to have the car inspected. Respondent did not renew the registration or insurance. Rather, he testified that he used paint and tape to obscure the final digit of his license plate number to avoid summonses and cameras that read license plates. (Tr. 17-18, 22-24, 29, 62, 66)

Respondent testified that on June 2, 2024, he produced counterfeit registration and inspection stickers to avoid parking summonses. He recounted downloading a template of a New York State registration sticker and editing it on his computer using Photoshop. Respondent repeated the process to create a fake inspection sticker. He then printed out the documents and displayed them on his vehicle. He offered that he left the fraudulent documents affixed to the Jetta because it was his “only mode of transportation” and he feared it would be “taken away” due to the lapsed registration. (Tr. 30-32, 36-37)

Respondent recalled that on June 18, 2024, he parked the Jetta at a fire hydrant in Queens. The vehicle was towed, and Respondent was issued summonses for illegal parking, an obstructed license plate, and forged registration. (Dept. Ex. 3) Respondent explained that after picking up the Jetta, he transferred the title to his sister, who registered and insured it under a new DMV-assigned license plate number, LLP 3187. (Tr. 20-21, 23-24, 27, 31-34)

Despite the title transfer, Respondent admitted that he remained the sole driver of the vehicle. He claimed that NYPD detectives “or someone from an investigation unit” were “harassing” his sister via telephone, asking her where the Jetta was located. Respondent testified

that after his sister received these calls, he bent the plates because his sister “instructed” him to. He conceded that he did so to make it difficult for the detectives to locate the car. When asked by the tribunal whether he reported the alleged harassment of his sister by members of the NYPD to the Internal Affairs Bureau, Respondent admitted that he had not done so. (Tr. 20-21, 27, 55-59, 64-66, 73)

Finally, Respondent acknowledged that in addition to failing to have the Jetta properly registered and inspected from June 2022 to July 2024, it was also uninsured. (Tr. 22) During cross-examination, he confirmed that he had accrued approximately \$50,000 in unpaid E-ZPass tolls and fines. He claimed that he could not afford to rectify these tickets because of “financial difficulties.” Respondent testified that he was the sole breadwinner for his children and their mother. He further recounted that during this time, his mother suffered an injury and could no longer work. Respondent assisted her by purchasing some groceries and buying her an adjustable bed. Respondent also detailed that his stepfather gifted him an aircraft, which he estimated was worth \$40,000. During the period he falsified the Jetta’s documentation, Respondent paid for the aircraft’s registration, insurance, and storage. (Tr. 22-26, 42 46-54, 63)

Respondent was asked during cross-examination about what steps he took to get control of his finances. He explained that he considered selling the Jetta but ultimately did not do so because he did not receive an offer that he felt reflected its value. Though he was aware that Members of Service are entitled to a MetroCard that allows them to use the transit system for free, Respondent offered that he declined to do so because he “personally [doesn’t] feel safe” on public transit, even when carrying a firearm. As for carpooling, he did not want to burden his colleagues and “add a load to other people.” He recognized that Uber and other rideshare apps

would provide another alternative mode of transportation, but only if he had expendable income.
(Tr. 40, 42-45, 72)

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on December 29, 2020, has pled guilty to, and accordingly has been found Guilty of Specifications 1 through 4, including conduct constituting the Penal Law felonies of Forgery and Criminal Possession of a Forged Instrument. The Department Advocate has recommended the presumptive penalty of termination for engaging in conduct classified as a felony, as set forth in the Disciplinary Matrix. (Matrix, p. 19) Counsel for Respondent, citing the "astronomical" financial burdens faced by his client, has argued for a mitigated penalty which would allow him to continue working as a police officer. For the reasons set forth below, I find that there are no facts before the tribunal warranting any mitigation whatsoever and recommend that Respondent's employment with the NYPD be terminated.

In the matter at hand, Respondent committed serious misconduct when he intentionally obstructed characters on his license plate in order to avoid paying to register and insure the car. Compounding the misconduct is the fact that he did so to prevent the plate from being captured by the various types of traffic cameras, allowing him to dodge being summonsed and paying

tolls. Rather than attempting to resolve the financial issues, Respondent doubled down on his refusal to follow the State's rules and regulations for vehicle ownership by engaging in criminal behavior when he forged and displayed the registration and inspection documents for the Jetta. Respondent continued this pattern by obstructing the digits of the second license plate, even after he was aware of the Department's investigation regarding his vehicle.

Respondent contended, without providing any corroborating evidence, that he was unable to afford to operate his vehicle with the requisite legal documentation and insurance as a result of his obligations to support his children and disabled mother. In the course of his testimony, Respondent implied that the obstruction of the licensed plate and forgery of the registration documents were temporary measures born out of fiscal desperation. I found his version of events to be self-serving and inconsistent with the evidence presented. Over the course of a couple of years, while living in the same borough that he worked in, Respondent accumulated an astounding fifty thousand dollars in unpaid tolls and fines—certainly an aggravating factor in this case. Respondent also chose to engage in felonious conduct instead of saving money by legal alternatives such as taking public transportation. This tribunal further finds his admitted priority of paying for the registration, storage, and insurance for his plane over his car is an additional aggravating factor. When confronted with an investigation into his actions, Respondent finally took steps to have the Jetta legally registered by his sister. However, he remained the sole driver and almost immediately, he bent the new license plate, continuing his flagrant disregard for the law. All of Respondent's actions, particularly the obstructing of the second license plate, revealed a willful and continuous plan to avoid summonses, a refusal to pay tolls, and demonstrated his belief that the rules he is sworn to enforce do not apply to him.

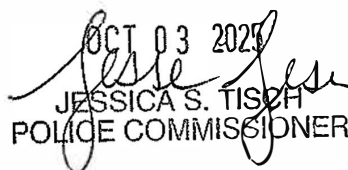
In considering the financial troubles that Respondent alleged without proof, it is clear that, if true, they were not the result of an unforeseeable, catastrophic event and do not, in any way, mitigate Respondent's egregious violations of Department rules and New York State law. Respondent has admitted to conduct which constitutes a felony. He has acquiesced that his actions were wrong; however, even now Respondent does not seem to appreciate the gravity and the breadth of the misconduct he committed. The Department and the public must be able to trust that members of service will not violate the very laws that they are entrusted to enforce. Moreover, there is a fundamental expectation that our police officers will not engage in willful deceit or behave in an intentionally dishonest manner. Respondent has wholly betrayed that trust, thereby rendering his continued employment as a police officer untenable. His conduct and attempts to make excuses for his actions illustrate a stunning lack of judgment and have irretrievably compromised his ability to remain entrusted with the responsibilities of a member of service. Therefore, based upon the totality of the circumstances, the seriousness of the misconduct to which Respondent has admitted, and the evidence submitted in this case, I recommend that the Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED



OCT 03 2025
JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER ELISAMUEL SAMBOY
TAX REGISTRY NO. 970836
DISCIPLINARY CASE NO. C-032491

Respondent was appointed to the Department on December 29, 2020. On his most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2023 and 2024.

Respondent has no formal disciplinary history. Separate and apart from the instant matter, Respondent has two pending sets of Departmental disciplinary charges, both of which are related to domestic incidents. The underlying incidents in these matters occurred in July 2023 and July 2025, respectively.

Respondent was placed on Level 2 Discipline Monitoring in December 2023; monitoring remains ongoing.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials